

## 25NNCV03845 25NNCV03845

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 25NNCV03845 Hearing Date: July 31, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Tax Costs

Hearing Date: 7/31/26

CASE NO./NAME: 25NNCV03845/ Narek Sargsian

v. Volvo Car USA, LLC et al.

Moving Party: Defendant Volvo Car USA, LLC

Responding Party: Plaintiff Narek Sargsian

Notice: Sufficient

Ruling: GRANT in part.

### NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at [email protected] or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

## BACKGROUND

This is a lemon law action. On June 5, 2025, plaintiff Narek Sargsian (Plaintiff) filed a Complaint against defendants Volvo Car USA, LLC (Defendant), Rusnak/Pasadena, and DOES 1 through 30, inclusive, alleging fraud, breach of written and implied warranty pursuant to the Madnuson-Moss Warranty Act, breach of written and implied warranty pursuant to the Song-Beverly Act, violations of Business & Professions Code, negligence, and strict liability. On November 4, 2025, the Parties resolved the claims and entered a settlement agreement (Agreement).

On April 22, 2026, Defendant filed the instant motion to strike or tax costs. On July 16, 2026, Plaintiff filed an opposition. On July 21, 2026, Defendant filed a reply.

## LEGAL

### STANDARD

Code of Civil Procedure section 1032(b) provides that a prevailing party is entitled as a matter of right to recover costs. Section 1033.5 itemizes costs that are recoverable. Code of Civil Procedure section 1033.5(c) states, in relevant part: "Any award for costs shall be subject to the following: (1) Costs are allowable if incurred, whether or not paid. (2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. (3) Allowable costs shall be reasonable in amount. (4) Items not mentioned in this section . . . may be allowed . . . in the Court's discretion." (Code Civ. Proc., § 1032(b).)

Code of Civil Procedure section 1032(a)(4) allows for other costs and expenses to be recoverable when expressly authorized by law. (Code Civ. Proc., § 1032(a)(4).)

California Rules of Court, rule

3.1700(b)(1) requires that a motion to tax costs be filed within 15 days of service of the cost bill. However, the rule does clarify an exception under the Code of Civil Procedure section 1010.6. (Cal. Rules of Ct., rule 31700(b)(1).) Under

that section, duty to “make any response within any period or on a date certain after the service of the document...shall be extended after service by electronic means by two court days”. (Code Civ. Proc., § 1010.6(a)(3).) California Rules of Court, rule 3.1700(b)(2) provides, “[u]nless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable.” (Cal. Rules of Ct., rule 31700(b)(2).)

“If the items in a cost memorandum appear proper, the verified memorandum is prima facie evidence the expenses were necessarily incurred by the prevailing party. To controvert this evidence, the burden is on the objecting party to present evidence showing the contrary.” (Whatley-Miller v. Cooper (2013) 212 Cal.App.4th 1103, 1115.) “[A] party’s ‘mere statements in the points and authorities accompanying its notice of motion to strike cost bill and the declaration of its counsel are insufficient to rebut the prima facie showing [that the costs were necessarily incurred].” (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266.)

## DISCUSSION

### Defendant objects

to the amounts Plaintiff claims regarding (1) filing and motion fees, (2) fees for electronic filing or service, (3) costs listed as “other”, and (4) expert fees. (Mot., p. 4.) In opposition, Plaintiff argues that filing of the Memorandum of Costs constitutes prima facie evidence of the reasonableness of expenses and costs incurred litigating the action. (Opp., p. 3.) Plaintiff argues that the Song-Beverly Consumer Warranty Act authorizes recovery of costs and expenses in this action. (Opp., p. 4.) Further, Plaintiff argues that Defendant does not present any evidence or binding authority to overcome that showing. (Opp., 3.)

### Filing and Motion Fees and Electronic Filing or Service Fees

#### Plaintiff

seeks \$723.05 in filing and motion fees (Item 1). (Memo. of Costs, p. 1, ¶ 1.) Defendant argues that Plaintiff does not provide competent proof supporting the claimed filing and motion fees or a showing of necessity. (Mot., p. 5.) Further, Defendant argues that Plaintiff’s worksheet does not provide documentation for

corresponding costs and includes improper costs not actually incurred. (Ibid.) Plaintiff seeks \$22.50 in electronic filing or service fees (Item 14). (Memo. of Costs, p. 1, ¶ 14.) Defendant argues that Plaintiff provides no competent evidence demonstrating the statutory basis or need for these costs. (Mot., p. 6.)

In opposition, Plaintiff

argues that each filing in Item 1 and 14 was mandated by statute, required by California rules of court, compelled by local practice, or expressly contemplated by the Agreement. (Opp., p. 5.) Plaintiff argues that each filing was necessary to pursue the action and filing fees are expressly recoverable under Code of Civil Procedure section 1033.5(a)(1). (Ibid.) Further, Plaintiff argues that each cost was incurred, and the anticipated Request for Dismissal (Worksheet, p. 4, ¶ 1.4) is required to be filed pursuant to the terms of the Agreement. (Opp., p. 6.) In reply, Defendant argues that Plaintiff's reliance on the position that the filings were required is overbroad. (Reply, p. 4.) Further, Defendant argues that not all costs have been actually incurred. (Ibid.)

The

memorandum of costs is prima facie evidence of reasonableness regarding costs and expenses. (Whatley-Miller, *supra*, 212 Cal.App.4th at 1115.) Here, Defendant presents no evidence to the contrary. Defendant only challenges the costs sought by Plaintiff by alleging that they are unsupported. Nonetheless, in their opposition, Plaintiff provides invoices for all documents filed in this action. (Margarian Decl., Exh. A-H.) Moreover, the terms of the Agreement require that Plaintiff file a Request for Dismissal, so that filing fee will be incurred pursuant to its terms. (Margarian Decl., Exh. K, p. 3.) While Defendant has not overcome Plaintiff's showing of reasonableness, as of July 27, 2026, the Court notes that Plaintiff has not filed a reply to their separate motion for attorney's fees making that anticipated fee not actually incurred.

Thus, the Court will tax Item 1 fees by \$23.67 to reflect \$699.38 in filing and motion fees actually incurred. The Court will not tax Item 14 fees as Defendant has not overcome Plaintiff's prima facie showing of reasonableness.

"Other" Costs

Plaintiff seeks

\$95.00 in "other" costs labeled as "AppearMe Service Fee". (Memo. of Costs, p.

1, ¶ 16; Worksheet p. 3, ¶ 16.) Defendant argues that this is not an enumerated cost under Code of Civil Procedure section 1033.5 and that in order to recover this cost Plaintiff must satisfy a necessity and reasonableness test, which they do not. (Mot., p. 6.) Further, Defendant argues that Plaintiff does not provide competent documentation or explanation demonstrating reasonable necessity for this fee. (Ibid.)

In opposition, Plaintiff argues that the “AppearMe Service Fee” was a necessary cost incurred to secure a required court appearance on a date when Plaintiff’s counsel was engaged in a simultaneous hearing for a different matter. (Opp., 8.) Further, Plaintiff argues that this cost is recoverable as a cost necessary to conduct litigation pursuant to section 1033.5(c)(4). (Ibid.) In reply, Defendant argues that this cost is not recoverable litigation cost and argues that a scheduling conflict should not be Volvo’s cost to reimburse. (Reply, p. 6.)

Here, Defendant provides no substantive evidence to challenge Plaintiff’s prima facie showing of reasonableness. Defendant only argues that it is unreasonable. Defendant provides no evidence or case law to support their position. Nonetheless, in opposition, Plaintiff provides an invoice for the appearance fee cited as “other” costs. (Margarian Decl., Exh. J.)

Thus, Defendant has not overcome Plaintiff’s showing of reasonableness and these costs will not be taxed.

#### Expert Fees

##### Plaintiff

seeks \$2,683.40 in expert witness fees and inspection fees for an individual identified as David Gurul. (Memo. of Costs, p. 1, ¶ 8; Worksheet p. 3, ¶ 8(b); Worksheet, p. 4, ¶ 8(b).) Defendant argues that Plaintiff does not identify the statutory mechanism authorizing recovery of expert fees for this action. (Mot., pp. 6-7.) Further, Defendant argues that Plaintiff does not provide an invoice or any other competent evidence to show that these costs were actually incurred, and reasonable, or were necessary. (Mot., p. 7.) Lastly, Defendant argues that the timing of this cost and the amount in proportion to other litigation costs is unreasonable. (Ibid.)

In

opposition, Plaintiff argues that “[u]nder Cal. Civ. Code § 1794(d), a prevailing buyer is entitled to recover all “costs and expenses” reasonably incurred in connection with the prosecution of a Song-Beverly action.” (Opp., p. 7.) Plaintiff argues that [c]ourts have repeatedly held that this provision encompasses expert and inspection costs, even where such costs might not otherwise be recoverable under Cal. Civ. Proc. Code § 1033.5”. (Ibid.) Plaintiff further argues that Defendant’s reliance on section 1033.5(b)(1) is misplaced because the Song-Beverly Act independently authorizes recovery for expert witnesses. (Ibid.) In reply, Defendant argues that alternatively, expert fees should be taxed because Plaintiff has not shown this amount was reasonably necessary. (Reply, p. 4.)

Here,

Plaintiff cites *Jensen v. BMW of North America, Inc.* which held that in enacting the Song-Beverly Act, the legislature chose to permit the prevailing buyer to recover both costs and expenses to broaden the scope of recovery. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 138.) Further, the Court in *Jensen* explicitly stated that “the Legislature amended section 1794 to provide for the recovery of “costs and expenses...[t]he legislative history indicates the Legislature exercised its power to permit the recovery of expert witness fees by prevailing buyers under the Act.” (*Jensen*, supra, 35 Cal.App.4th at 138.) Thus, Plaintiff has shown that expert fees are recoverable under the Song-Beverly Act.

In their reply,

Defendant argues that the fees should be taxed because Plaintiff has not shown reasonableness; however, Plaintiff has made a prima facie showing of reasonableness in filing the memorandum of costs. Plaintiff’s counsel declares that at the time inspection was conducted, the expert witness was reasonably necessary to the litigation even though the matter ended up resolved prior to trial. (Margarian Decl., ¶ 16.) Plaintiff also provides the invoice of the expert witness reflecting reasonable hours expended and an itemized list of fees sought. (Margarian Decl., Exh. I.) Defendant does not provide evidence to argue that these fees were not reasonably necessary as Plaintiff alleges.

Thus, Defendant

has not overcome Plaintiff’s showing of reasonableness and these costs will not be taxed.

CONCLUSION

AND ORDER

Defendant Volvo Car USA, LLC's Motion to Strike/Tax Costs is GRANTED IN PART. Electronic filing fees are taxed in the amount of \$23.67 only.

MOVING PARTY is to give notice.